

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble Sr., Department Advocate's Office, December 27, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-28804, 2024-29959, and PODS No. C-032091 against Police Officer Michael Phipps, Tax Registry No. 965415. The case was conferenced on December 19, 2024, before Assistant Deputy Commissioner of Trials (ADCT), Honorable Anne Stone. The CCRB recommended the negotiated penalty of a Command Discipline B and the forfeiture of TEN (10) vacation days for DADS No. 2023-28804, 2024-29959, and PODS No. C-032091, after accepting the finding(s) of substantiation of the allegations contained in the Charges and Specifications, with the penalties for each case to run concurrently to each other. The Charges and Specifications will be dismissed for plea purposes. ADCT Stone did not endorse the recommended penalty, and instead recommended the penalty of the forfeiture of TWENTY-SIX (26) penalty days and Training. Nonetheless, the CCRB maintains its endorsement of the Negotiated Settlement of a Command Discipline B, forfeiture of TEN (10) vacation days and dismissal of the charges.

Andre Applewhite

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Chief Prosecutor

New York City Civilian Complaint Review Board

APPROVED

MAY 02 2025

Jessica S. Tisch
JESSICA S. TISCH
POLICE COMMISSIONER

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO. C-031261
BOOK & PAGE NO. Page 1 of 2
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, PHIPPS	FIRST MICHAEL	M.I.	COMMAND 046
SHIELD NO. 23908	TAX REGISTRY NO. 965415	SOCIAL SECURITY NO.	DATE APPOINTED 01/10/2018	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Michael Phipps, on or about October 30, 2022, at approximately 0046, while assigned to 046 PCT and on duty, in front of § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that Officer Phipps stopped § 87(2)(b) without sufficient legal authority.	DISMISSED	B - COMMAND DISCIPLINE It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated.
2. Police Officer Michael Phipps, on or about October 30, 2022, at approximately 0046, while assigned to 046 PCT and on duty, in front of § 87(2)(b) Bronx County, wrongfully used force, in that Officer Phipps deployed a taser on § 87(2)(b) without police necessity.	DISMISSED	VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated. Refer to cases C-031605 / C-032091


FIRST DEPUTY COMMISSIONER

02/11/25
DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)


POLICE COMMISSIONER

5/2/25
DATE

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO. C-031261
BOOK & PAGE NO. Page 2 of 2
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, PHIPPS	FIRST MICHAEL	M.I.	COMMAND 046
SHIELD NO. 23908	TAX REGISTRY NO. 965415	SOCIAL SECURITY NO.	DATE APPOINTED 01/10/2018	
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
3. Police Officer Michael Phipps, on or about October 30, 2022, at approximately 0046, while assigned to 046 PCT and on duty, in front of § 87(2)(b) Bronx County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that Officer Phipps threatened § 87(2)(b) with the use of force when Officer Phipps stated to § 87(2)(b) "You're going to get shot", without police necessity.	DISMISSED	
4. Police Officer Michael Phipps, on or about October 30, 2022, at approximately 0046, while assigned to 046 PCT and on duty, in the vicinity § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that Officer Phipps entered § 87(2)(b) in the Bronx without sufficient legal authority.	DISMISSED	


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DATE**POLICE COMMISSIONER'S APPROVAL**

- ☒ Approved
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CASE NO.
C-031605

BOOK & PAGE NO.

Page 1 of 2

PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, PHIPPS	FIRST MICHAEL	M.I.	COMMAND 046
SHIELD NO. 23908	TAX REGISTRY NO. 965415	SOCIAL SECURITY NO.	DATE APPOINTED 01/10/2018	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Michael PHIPPS, on or about April 1, 2022, at approximately 0205, while assigned to 046 PCT and on duty, in route to § 87(2)(b) Hospital, Bronx County, engaged in conduct prejudicial to good order, efficiency, or discipline of the Department in that PO PHIPPS spoke discourteously to § 87(2)(b) by stating in sum and substance, "Let us do the fucking paperwork."	DISMISSED	B - COMMAND DISCIPLINE It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated.
2. Police Officer Michael PHIPPS, on or about April 1, 2022, at approximately 0205, while assigned to 046 PCT and on duty, in route to § 87(2)(b) Hospital, Bronx County, engaged in conduct prejudicial to good order, efficiency, or discipline of the Department in that PO PHIPPS spoke discourteously to § 87(2)(b) by stating in sum and substance "You've been locked up before you know all this shit takes time" without sufficient legal authority.	DISMISSED	VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated. Refer to cases C-031261 / C-032091


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CASE NO.
C-031605BOOK & PAGE NO.
Page 2 of 2

PERSONNEL ORDER NO.

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SHIELD NO. 23908	TAX REGISTRY NO. 965415	SOCIAL SECURITY NO.	DATE APPOINTED 01/10/2018	
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SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
3. Police Officer Michael PHIPPS, on or about April 1, 2022, at approximately 0205, while assigned to 046 PCT and on duty, in route to § 87(2)(b) Hospital, Bronx County, used offensive language, in that he made remarks based on the perceived gender of § 87(2)(b) by stating in sum and substance "Just give us the fucking pants. That's why I'm not like Yo, you're being a pussy."	DISMISSED	
4. Police Officer Michael PHIPPS, on or about April 1, 2022, at approximately 0205, while assigned to 046 PCT, and on duty, in route to § 87(2)(b) Hospital, Bronx County, engaged in conduct prejudicial to good order, efficiency, or discipline of the Department in that PO PHIPPS spoke discourteously to § 87(2)(b) by stating in sum and substance "You made me get fucking meth on my hands" without sufficient legal authority.	DISMISSED	


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CASE NO. C-032091
BOOK & PAGE NO. Page <u>1</u> of <u>1</u>
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, PHIPPS	FIRST MICHAEL	M.I.	COMMAND 046
SHIELD NO. 23908	TAX REGISTRY NO. 965415	SOCIAL SECURITY NO.	DATE APPOINTED	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Michael PHIPPS, on or about June 13, 2023, at approximately 10:00 pm, while assigned to the 46th Precinct and on duty, in the vicinity of § 87(2)(b) Bronx County, used offensive language based upon the perceived sexual orientation of an individual, in that Officer Phipps remarked "All of us are gonna suck your dick? That's gay," to an individual.	DISMISSED	B - COMMAND DISCIPLINE It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated.
2. Police Officer Michael PHIPPS, on or about June 13, 2023, at approximately 10:00 pm, while assigned to the 46th Precinct and on duty, in the vicinity of § 87(2)(b) Bronx County, spoke discourteously, in that Officer Phipps remarked "All of us are gonna suck your dick? That's gay," to an individual, without police necessity.	DISMISSED	VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated. Refer to cases C-031261 / C-031605



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